

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                   |                                                       |                           |                                                                                                                                                                                                            |
|---------------------------------------------------|-------------------------------------------------------|---------------------------|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| Investigator:<br>Ethan Waterman                   | Team:<br>Squad #10                                    | CCRB Case #:<br>202200063 | <input checked="" type="checkbox"/> Force <input type="checkbox"/> Discourt. <input type="checkbox"/> U.S.<br><input type="checkbox"/> Abuse <input type="checkbox"/> O.L. <input type="checkbox"/> Injury |
| Incident Date(s)<br>Thursday, 12/16/2021 10:12 PM | Location of Incident:<br>63 Sutter Avenue in Brooklyn | 18 Mo. SOL<br>6/16/2023   | Precinct:<br>73                                                                                                                                                                                            |
| Date/Time CV Reported<br>Thu, 12/23/2021 1:24 PM  | CV Reported At:<br>IAB                                | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Tue, 01/04/2022 11:17 AM                                                                                                                                                     |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |
|                    |      |              |

| Subject Officer(s)      | Shield | TaxID  | Command |
|-------------------------|--------|--------|---------|
| 1. PO James Fowler      | 03099  | 967512 | 073 PCT |
| 2. SGT Christopher Musa | 03353  | 952040 | 073 PCT |
| 3. PO Everett Kerr      | 28828  | 967139 | 073 PCT |

| Witness Officer(s)     | Shield No | Tax No | Cmd Name |
|------------------------|-----------|--------|----------|
| 1. PO Trinity Fields   | 16249     | 967874 | 073 PCT  |
| 2. PO David Damico     | 16358     | 957509 | 073 PCT  |
| 3. PO Thomas Peters    | 01163     | 955322 | SRG 3    |
| 4. PO Yuriy Demchenko  | 04740     | 946912 | SRG 3    |
| 5. PO Salem Abdallah   | 12960     | 956363 | PSA 2    |
| 6. PO Joshua Brown     | 18974     | 958333 | PSA 2    |
| 7. PO Sali Cerimi      | 08390     | 965974 | 073 PCT  |
| 8. PO Vincent Biscardi | 19500     | 967776 | 073 PCT  |

| Officer(s)               | Allegation                                                                | Investigator Recommendation |
|--------------------------|---------------------------------------------------------------------------|-----------------------------|
| A . SGT Christopher Musa | Force: Sergeant Christopher Musa used physical force against § 87(2)(b)   | A . Exonerated              |
| B . PO James Fowler      | Force: Police Officer James Fowler used physical force against § 87(2)(b) | B . Exonerated              |
| C . PO Everett Kerr      | Force: Police Officer Everett Kerr used physical force against § 87(2)(b) | C . Exonerated              |

### Case Summary

On December 23, 2021, § 87(2)(b) called the Internal Affairs Bureau and filed this complaint as a reporting non-witness on behalf of her boyfriend, § 87(2)(b). The investigation received this case on January 4, 2022. The CCRB spun off two cases – 202201696 and 202204391 – regarding other alleged misconduct on different incident dates.

On December 16, 2021, at approximately 10:12 p.m., in the vicinity of 63 Sutter Avenue in Brooklyn, Sergeant Christopher Musa of the 73<sup>rd</sup> Precinct once pushed § 87(2)(b) to the ground (**Allegation A, Force: Physical Force, Exonerated**). Police Officer James Fowler and Police Officer Everett Kerr (both of the 73<sup>rd</sup> Precinct) then restrained § 87(2)(b) (**Allegations B and C, Force: Physical Force, Exonerated**).

§ 87(2)(b) was arrested on two charges § 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

§ 87(2)(b)

The investigation received body-worn camera (BWC) footage from the following officers: Police Officer Salem Abdallah, Police Officer Vincent Biscardi, Police Officer Joshua Brown, Police Officer Sali Cerimi, Police Officer David Damico, Police Officer Yuriy Demchenko, Police Officer Trinity Fields, PO Fowler, PO Kerr, Sgt. Musa, and Police Officer Thomas Peters (**BR 03-15**). The relevant aspects of this footage shall be discussed below.

### Findings and Recommendations

**Allegation (A) Force: Sergeant Christopher Musa used physical force against § 87(2)(b)**

**Allegation (B) Force: Police Officer James Fowler used physical force against § 87(2)(b)**

**Allegation (C) Force: Police Officer Everett Kerr used physical force against § 87(2)(b)**

The investigation has established the following facts. PO Damico and PO Fields approached § 87(2)(b) while he stood in front of 63 Sutter Avenue in Brooklyn and held a can of Bud Light Strawberry Rita. PO Damico asked § 87(2)(b) for his identification and told him that it was illegal to have an open container of alcohol on the street. § 87(2)(b) ran away from PO Damico and PO Fields. As § 87(2)(b) ran away, Sgt. Musa ran towards § 87(2)(b) from his right side and pushed him once. § 87(2)(b) fell to the ground and began to stand up. PO Fowler and PO Kerr grabbed § 87(2)(b) in front of a gate to a private house. § 87(2)(b) became unconscious; EMTs ultimately removed § 87(2)(b) to § 87(2)(b).

In his CCRB interview (**BR 16**), § 87(2)(b) said that he went unconscious because of being hit in the side. § 87(2)(b) did not know any details about how he was hit.

§ 87(2)(b) was not present for this incident (**BR 24**).

Per Sgt. Musa's BWC (**BR 07**), at the 00:47 timestamp, § 87(2)(b) runs down the sidewalk. Sgt. Musa runs towards § 87(2)(b) from the right side and pushes § 87(2)(b) once. § 87(2)(b) loses his balance and falls to the ground. § 87(2)(b) begins to get up again, but other officers immediately surround § 87(2)(b). § 87(2)(b) appears to go limp once the officers surround him. There is no audio in this sequence because Sgt. Musa had not yet activated his BWC.

PO Fowler's and PO Kerr's BWCs both show them converge upon § 87(2)(b) at the 00:54 timestamp. It is unclear how they restrain § 87(2)(b) upon first getting close to him. § 87(2)(b) falls to the ground and the two grab § 87(2)(b)'s limbs to pull him away from the gate. § 87(2)(b) is apparently unconscious.

Captain Josef Nolte prepared a Threat, Resistance, and Injury Report regarding this incident (**BR 17**). Captain Nolte specified the basis for the encounter as a "crime/violation in progress," the type of force used as "forcible take down, wrestling/grappling," and the injuries sustained by § 87(2)(b) as "unconsciousness." Captain Nolte wrote that "PO Fowler and PO Kerr were right behind Sgt. Musa and were able to restrain § 87(2)(b) from further flight and wrestle him to the ground." Captain Nolte further noted, "It is unclear if § 87(2)(b) hit the fence, a brick fence support, or the sidewalk to cause his unconsciousness."

§ 87(2)(a) PBH §18(6)

§ 87(2)(g)

Per Patrol Guide Procedure 221-01 (**BR 19**), members of service must consider the following criteria regarding the reasonable use of force: the nature and severity of the crime/circumstances; actions taken by the subject; duration of the action; immediacy of the perceived threat or harm to the subject, and/or bystanders; whether the subject is actively resisting custody; whether the subject is attempting to evade arrest by flight; number of subjects in comparison to the MOS; subject's violent history, if known; presence of hostile crowd or agitators; subject apparently under the influence of a stimulant/narcotic which would affect pain tolerance or increase the likelihood of violence.

§ 87(2)(g)

It is recommended that **Allegations A, B, and C** be exonerated.

#### Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in eight allegations (**BR 20**).
  - § 87(2)(b)
- § 87(2)(b) has been party to two CCRB complaints and has been named as a victim in three allegations (**BR 21**).
  - 200606831 involved allegations of physical force, threat of force, and search (of person), all of which were closed as alleged victim unavailable.
  - § 87(2)(b) was a witness in 202204391, which remains open.
- PO Fowler has been a member of service for three years and has been a subject in five CCRB complaints and 11 allegations, one of which was substantiated and two of which were cited.
  - 202007818 involved a substantiated allegation of failure to provide RTKA card and two citations for other possible misconduct. Regarding the failure to provide RTKA card, the Board recommended Command Discipline A and the NYPD has yet to impose discipline.
  - § 87(2)(g)
- PO Kerr has been a member of service for three years and has been a subject in three CCRB complaints and nine allegations, none of which were substantiated. § 87(2)(g)

- § 87(2)(g)

## Mediation, Civil, and Criminal Histories

- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]  
[REDACTED]

Squad: 10

|               |                          |                            |                   |
|---------------|--------------------------|----------------------------|-------------------|
| Investigator: | <u>Ethan C. Waterman</u> | <u>Inv. Ethan Waterman</u> | <u>07/11/2022</u> |
|               | Signature                | Print Title & Name         | Date              |

|               |                       |                          |                   |
|---------------|-----------------------|--------------------------|-------------------|
| Squad Leader: | <u>Maura R. Roche</u> | <u>IM Maura R. Roche</u> | <u>07/11/2022</u> |
|               | Signature             | Print Title & Name       | Date              |

Reviewer: \_\_\_\_\_

| Signature | Print Title & Name | Date |
|-----------|--------------------|------|
|-----------|--------------------|------|